

KREUTZER v CHIEF PUBLIC DEFENDER

24CF14729

PETITION FOR WRIT OF MANDATE

On July 29, 2024, Petitioner Paul A. Kreutzer ("Petitioner") filed a Petition for Writ of Mandate against Chief Public Defender Calaveras County ("Respondent") seeking access to certain records.

Currently on calendar is a hearing on Petitioner's writ. However, a review of the Court docket shows that the Respondent was never served with the petition.

The Petition is **DENIED** without prejudice to properly serve the Respondent and reschedule the hearing.

The Clerk shall provide notice of the Ruling forthwith. No further formal Order Is required.

FREEMAN, SR. v SMITH

24CV47282

DEFENDANT'S MOTION TO STRIKE

Plaintiffs Michael Steven Freeman, Sr. and Janice Marie Freeman as Trustees of the Michael Steven Freeman Sr. and Janice Marie Freeman Revocable Trust, and Michael Steven Freeman, Jr. ("Plaintiffs") filed their Complaint to quiet title against Defendant Lyle Smith ("Defendant"). Now before the Court is Defendant's Motion to Strike.

I. Factual Background

Plaintiffs are the owners of real property located at 12168 Sheep Ranch Road in Calaveras County ("Freeman Property"). Defendant is the owner of real property located at 13000 Sheep Ranch Road in Calaveras County ("Smith Property"). The Freeman Property is situated adjacent to and northeasterly of the Smith Property. Sheep Ranch Road is a public road.

Ingress and egress to both the Freeman Property and the Smith Property is by way of a private road ("Road") that intersects Sheep Ranch Road. (Complaint ¶ 9.) The Road is recorded as a 50 foot wide road and public utility easement. (*Id.* ¶ 10.) The Road leaves its intersection at Sheep Ranch Road, winds towards the Smith Property, and then continues to the Freeman Property. (*Id.* ¶ 9.)

Plaintiffs have brought the instant action to ensure that they can have continued use of the Road and electric power lines and panels.

II. Legal Standard

Code of Civil procedure section 435(b)(1) provides that "any party within the time allowed to respond to a pleading, may serve and file a notice of motion to strike the whole or any part thereof..." Thereafter the court may, upon motion or at its own discretion:

- a) Strike out any irrelevant, false, or improper matter inserted in the pleading;
- b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or any order of the court.

(Code Civ. Proc. § 436.)